

In both matters, Defendant filed a Response. The Responses were identical.

Background

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

A responding party's service, before the hearing on a "deemed admitted" motion, of substantially compliant responses, defeats a propounding party's attempt to have the requests for admissions deemed admitted. Code Civ. Proc. § 2033.280(c); St. Mary v. Superior Court, supra, 223 Cal.App.4th at 776; see also CJER, California Judges Benchbook: Civil Proceedings - Discovery (2024) ("CJER Civ. Proc. Discovery"), § 21.22. A monetary sanction remains strictly mandatory against the party or attorney, or both, whose late response necessitated the making of the motion. Code Civ. Proc. § 2033.280(c); see CJER Civ. Proc. Discovery, § 21.22.

Analysis

In the instant matters, the Defendant responded that he in fact provided discovery responses to the Plaintiff; however, the responses were to the Plaintiff's set of Interrogatories. There was no indication that Defendant provided a response to Plaintiff's Request for Admission.

Disposition

The court finds that Defendant is making a good faith effort to respond to Plaintiff's requests in that it appears he did make partial responses to Plaintiff's discovery requests. The court also notes that Defendant is self-represented.

The court will continue this motion for 30 days, to give the Defendant the opportunity to substantially comply with the Requests for Admission.

**10. 9:00 AM CASE NUMBER: L25-04755
CASE NAME: JPMORGAN CHASE BANK N.A. VS. DANIEL TOMPKINS
*HEARING ON MOTION FOR DISCOVERY
FILED BY: JPMORGAN CHASE BANK N.A.
*TENTATIVE RULING**

On December, 4, 2025, In both matters, Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion). In both matters, Plaintiff attached a proof of service for this Motion, as well for Request for Admission.

The motions are identical and only differ in docket number.

In both matters, Plaintiff attached the particular facts at issue in their Attachment One to Exhibit One.

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Background

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Analysis

In the instant matters, the Defendant responded that he in fact provided discovery responses to the Plaintiff; however, the responses were to the Plaintiff's set of Interrogatories. There was no indication that Defendant provided a response to Plaintiff's Request for Admission.

Disposition

The court finds that Defendant is making a good faith effort to respond to Plaintiff's requests in that it appears he did make partial responses to Plaintiff's discovery requests. The court also notes that Defendant is self-represented.

The court will continue this motion for 30 days, to give the Defendant the opportunity to substantially comply with the Requests for Admission.

11. 9:00 AM CASE NUMBER: L25-05488

CASE NAME: CAPITAL ONE, N.A. VS. CHERYL RUIZ

***HEARING ON MOTION IN RE:**

FILED BY:

TENTATIVE RULING:

Parties were ordered to appear on January 20, 2026, to address status of whether Defendant has served on Plaintiff substantially compliant responses to Plaintiff's discovery request.

Disposition

No Tentative Ruling will issue.